

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2286

By: Hilbert

AS INTRODUCED

An Act relating to professions and occupations;
enacting 59 O.S. Section 396.3b, creating the
assistant funeral director license; establishing
license application requirements; creating license
procedures; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 396.3b of Title 59, unless there
is created a duplication in numbering, reads as follows:

A. The term "assistant funeral director" as herein used means a
person who assists a duly Oklahoma licensed funeral director in one
or more of the principal functions of funeral directing, and is
actively engaged in such work. An assistant funeral director must
be an employee of the funeral director-in-charge under whom the
employee is registered, and shall be a person to whom the funeral
director-in-charge delegates the responsibility of conducting

1 funeral services, making funeral arrangements, and making
2 interments.

3 B. The State Board may, in its discretion, license assistant
4 funeral directors to each Oklahoma licensed funeral director-in-
5 charge. The funeral director-in-charge shall have only one
6 assistant funeral director. Licensure as an assistant funeral
7 director shall be separate and distinct from registration as an
8 apprentice funeral director and/or embalmer. The board may issue an
9 assistant funeral director license on successful completion of the
10 Oklahoma Funeral Board law examination, the manner and form of which
11 is to be determined by the Board, and upon the payment of the
12 application fee which shall include the license fee for the current
13 year or portion thereof, and such application and registration and
14 renewal fee shall be in the amount fixed by the Board in accordance
15 with the provision of Section 396.4 of Title 59 of the Oklahoma
16 Statutes. Before issuing a license to an applicant for an assistant
17 funeral director's license, the Board shall require satisfactory
18 proof that the applicant is capable and trustworthy to act as such
19 and that the applicant is a person of good moral character, has a
20 good standing in the community and is qualified to engage in the
21 business. In determining the moral character of any such applicant,
22 the Board shall take into consideration any felony conviction of
23 such person, but such conviction shall not automatically operate as
24 a bar to licensure. Each person applying for an assistant funeral

1 director's license shall make application and be recommended in
2 writing on forms provided by the Board. The application shall show
3 that the applicant is at least eighteen (18) years of age and shall
4 have at least sixty (60) semester hours of study earned, measured in
5 quarter or clock hours, from a regionally accredited college or
6 university before such license can be issued to the applicant. Upon
7 issuing a license to an assistant funeral director, as herein
8 provided, the Board shall cause the licensee to be registered in
9 under the supervision of the Oklahoma licensed funeral director by
10 whom such licensee is employed and under whom such licensee is
11 registered. The funeral director under whom the assistant funeral
12 director has been registered must immediately notify the Board when
13 the licensee has left the director's employ. Upon the re-employment
14 of the licensee by any other funeral director-in-charge, such
15 licensee shall be reinstated by the Board. The work of an assistant
16 funeral director shall at all times be under the supervision and
17 control of the Oklahoma licensed funeral director under whom the
18 licensee is registered. Licenses of assistant funeral directors may
19 be suspended or revoked, or the Board may refuse to issue or renew
20 the same, for any of the reasons and in the manner stated herein for
21 funeral directors' licenses.

22 C. The expiration date of each license shall be December 31st.
23 Subject to the provisions of this section, each license shall be
24 renewable on an annual basis upon the filing of a renewal

1 application prior to the expiration date of the license and upon
2 payment of the renewal fee.

3 D. The funeral director assistant shall complete continuing
4 education in accordance with the provision of Section 396.5b of
5 Title 59 of the Oklahoma Statutes.

6 SECTION 2. This act shall become effective November 1, 2025.

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